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Case Number: 25SMCV00174 Hearing Date: September 24, 2026 Dept: M

CASE NAME: Privilege Underwriters Reciprocal

Exchange v. Bankers Standard Insurance Company

CASE NO.: 25SMCV00174

MOTION: Motion

for Summary Judgment

HEARING DATE: 9/24/2026

Legal

Standard

A party may move for summary judgment in any action or proceeding if it is contended the action has no merit or that there is no defense to the action or proceeding. (CCP, § 437c(a).) "The purpose of the law of summary judgment is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843.)

"A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants

either owed or did not owe a duty to the plaintiff or plaintiffs.” (CCP, § 437c(f)(1).) If a party seeks summary adjudication as an alternative to a request for summary judgment, the request must be clearly made in the notice of the motion. (*Gonzales v. Superior Court* (1987) 189 Cal.App.3d 1542, 1544.) “[A] party may move for summary adjudication of a legal issue or a claim for damages other than punitive damages that does not completely dispose of a cause of action, affirmative defense, or issue of duty pursuant to” subdivision (t). (CCP, § 437c(t).)

To prevail, the evidence submitted must show there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. (CCP, § 437c(c).) The motion cannot succeed unless the evidence leaves no room for conflicting inferences as to material facts; the court has no power to weigh one inference against another or against other evidence. (*Murillo v. Rite Stuff Food Inc.* (1998) 65 Cal.App.4th 833, 841.) In determining whether the facts give rise to a triable issue of material fact, “[a]ll doubts as to whether any material, triable, issues of fact exist are to be resolved in favor of the party opposing summary judgment...” (*Gold v. Weissman* (2004) 114 Cal.App.4th 1195, 1198-99.) “In other words, the facts alleged in the evidence of the party opposing summary judgment and the reasonable inferences there from must be accepted as true.” (*Jackson v. County of Los Angeles* (1997) 60 Cal.App.4th 171, 179.) However, if adjudication is otherwise proper the motion “may not be denied on grounds of credibility,” except when a material fact is the witness’s state of mind and “that fact is sought to be established solely by the [witness’s] affirmation thereof.” (CCP, § 437c(e).)

Once the moving party has met their burden, the burden shifts to the opposing party “to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto.” (CCP § 437c(p)(1).) “[T]here is no obligation on the opposing party... to establish anything by affidavit unless and until the moving party has by affidavit stated facts establishing every element... necessary to sustain a judgment in his favor.” (*Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468.)

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“The pleadings play a key role in a summary judgment motion. The function of the pleadings in a motion for summary judgment is to

delimit the scope of the issues and to frame the outer measure of materiality in a summary judgment proceeding.” (Hutton v. Fidelity National Title Co. (2013) 213 Cal.App.4th 486, 493, quotations and citations omitted.) “Accordingly, the burden of a defendant moving for summary judgment only requires that he or she negate plaintiff’s theories of liability as alleged in the complaint; that is, a moving party need not refute liability on some theoretical possibility not included in the pleadings.” (Ibid.)

EVIDENTIARY ISSUES

Plaintiff’s objections are SUSTAINED as to no. 2, and OVERRULED as to no. 3.

Defendant’s written objections to the opposition evidence does not comply with rule California Rules of Court (“CRC”) rule 3.1354(b).

Plaintiff’s request for judicial notice is GRANTED.

Analysis

Defendant Bankers Standard

Insurance Company (Defendant, or “Bankers”) moves for summary judgment against Plaintiff Privilege Underwriters Reciprocal Exchange (Plaintiff, or “PURE”).

Allegations

This action arises from the settlement of two underlying personal injury lawsuits. On June 27, 2019, Aidan Ahearn (Marla Mayer and Christopher Ahearn’s son) was driving a 2016 Volkswagen and was in a motor vehicle accident. (Compl., ¶ 7.) The allegedly injured parties filed two separate lawsuits, Talva v. Ahearn, et al. (LASC case no. 20STCV34699) against Aidan Ahearn, and Blanton v. Ahearn, et al. (LASC case no. 21STCV42601) against Aidan and Christopher Ahearn. (Compl., ¶ 8.)

Prior to the accident, PURE issued a personal auto policy to Marla Mayer and Christopher Ahearn, effective from April 23, 2019, to April 23, 2020. The auto policy’s “bodily injury” and “property damage” limit was \$500,000 “per occurrence.” (Compl., ¶ 9.) The PURE auto policy’s Declarations specifically described the Volkswagen involved in

the accident. (Id.) PURE also issued a personal excess liability policy to Marla Mayer and Christopher Ahearn, effective from April 23, 2019, to April 23, 2020, with an excess policy limit of \$10 million. (Id., ¶ 10.) Unlike the Bankers personal umbrella liability policy, the PURE excess policy does not describe the Volkswagen involved in the accident. (Id.)

Bankers issued a personal umbrella liability policy to Marla Mayer and Christopher Ahearn, effective from January 6, 2019, to January 6, 2020, with a \$10 million limit “per occurrence.” (Compl., ¶ 11.) At the time of the subject accident, the Bankers umbrella policy’s Declarations described the Volkswagen involved in the accident as well as the two other vehicles listed on the PURE auto policy. (Id.) The Bankers umbrella policy’s schedule of underlying insurance did not list the PURE excess policy. (Id.) Instead, the schedule of underlying insurance listed another umbrella policy that a Bankers-affiliated insurer issued: a Chubb “PERSONAL UMBRELLA/EXCESS LIABILITY” policy no. 1120093316 with a \$10 million “each occurrence” limit. (Id.)

In September 2023, Bankers purported to retroactively modify its umbrella policy to remove the Volkswagen from the Declarations and to unilaterally add the PURE excess policy to the schedule of underlying insurance. (Compl., ¶ 12.) Bankers only removed the Volkswagen involved in the accident and not the two other vehicles listed on the PURE auto policy. (Id.) Bankers also removed the Chubb umbrella policy no. 1120093316 that was listed on the schedule of underlying insurance and replaced it with the PURE excess policy. (Id.)

Bankers declined coverage and refused to contribute its umbrella policy limits to settle the Talva and Blanton lawsuits. (Compl., ¶ 13.) In September 2023, in order to protect the insureds interests, PURE paid the entire settlement payment to secure a release for its insureds in the lawsuits. (Id., ¶ 14.) PURE’s payments included \$457,533.36 under its primary auto policy, and \$1,992,466.63 under its excess policy. (Id.)

The complaint states three causes of action for subrogation, indemnity and contribution. The subrogation cause alleges when the 2019 accident happened, the Bankers umbrella policy described as a “covered vehicle” the Volkswagen involved in the accident and the PURE excess policy, in contrast, did not describe any vehicles. (Compl., ¶ 17.) Over four years after

the accident, in 2024, Bankers retroactively removed the Volkswagen from its umbrella policy's Declarations. (Id., ¶ 18.) Bankers only removed the Volkswagen involved in the accident, and not the two (2) other vehicles listed on the PURE auto policy. (Id.) Bankers also retroactively listed the PURE excess policy to replace the Bankers-affiliated insurer, Chubb umbrella policy no. 1120093316 on the Bankers umbrella policy's schedule of underlying insurance. (Id.) Bankers' retroactive modification of its umbrella policy allegedly violated Insurance Code section 11580.9(f), which allows modification of the statutory priority rules only if all insurers whose policies apply to the loss and their named insureds sign a written agreement. (Id., ¶ 19.) PURE has not signed any agreement that would allow the Bankers umbrella policy to enforce the purported post-loss underwriting that removed the involved vehicle from the policy and added the PURE excess policy to Bankers' schedule of underlying insurance. (Id.) After PURE's primary auto policy exhausted, the Bankers umbrella policy should have paid up to its policy limit to settle the lawsuits before the PURE excess policy's limit could apply. (Id., ¶ 20.) Because of Bankers' refusal to tender its policy's limits, PURE fully funded the settlements. (Id., ¶ 21.) Payment was made because of possible exposure above the policy limits and the insurers' duties of good faith and fair dealing to the insureds and was not voluntary. (Id.) As a result, PURE paid far more than its fair share of the settlements. (Id.) The insureds under the Bankers umbrella policy had and have an existing, assignable cause of action against Bankers which they could have asserted for their own benefit had PURE not funded \$1,992,466.63 under its excess policy to secure their release. (Id., ¶ 22.) Bankers is obligated to reimburse PURE for the amount it paid under its excess policy to settle the lawsuits. (Id., ¶ 23.)

The indemnity and contribution

causes of action alternatively allege that PURE does not have to step in the shoes of its insureds to fully recover against Bankers. (Id., ¶ 25.) Under indemnification, Bankers should pay most or all of the amount PURE paid under its excess policy to the settlements, plus interest. (Id., ¶ 26.) If the Court finds that the PURE excess policy limit and Bankers umbrella policy limit should have both applied to settle the lawsuits, Bankers is obligated to reimburse PURE for a portion of the amount it paid to secure its insureds' release in the lawsuits that exceeded its fair share. (Id., ¶ 28.)

Subrogation, Contribution and Indemnity, Generally

Generally, an insurer may seek reimbursement

from the other insurers obligated to defend the lawsuit under principles of equity. (Maryland Casualty Co. v. Nationwide Mutual Ins. Co. (2000) 81 Cal.App.4th 1082, 1088.) "In the insurance context, equitable subrogation and equitable contribution doctrines each pertain to the allocation of costs when there is more than one potentially responsible insurance company. But, the two doctrines are 'entirely different' concepts. [Citation.]" (Ibid.)

"Equitable subrogation allows an insurer that paid coverage or defense costs to be placed in the insured's position to pursue a full recovery from another insurer who was primarily responsible for the loss. [Citation.] Because this doctrine shifts the entire cost burden, the moving party insurer must show the other insurer was primarily liable for the loss and that the moving party's equitable position is inferior to that of the second insurer. [Citations.]" (Maryland, *supra*, 81 Cal.App.4th at 1088–1089.) "The essential elements of an insurer's cause of action for equitable subrogation are as follows: [1] the insured suffered a loss for which the defendant is liable, either as the wrongdoer whose act or omission caused the loss or because the defendant is legally responsible to the insured for the loss caused by the wrongdoer; [2] the claimed loss was one for which the insurer was not primarily liable; [3] the insurer has compensated the insured in whole or in part for the same loss for which the defendant is primarily liable; [4] the insurer has paid the claim of its insured to protect its own interest and not as a volunteer; [5] the insured has an existing, assignable cause of action against the defendant which the insured could have asserted for its own benefit had it not been compensated for its loss by the insurer; [6] the insurer has suffered damages caused by the act or omission upon which the liability of the defendant depends; [7] justice requires that the loss be entirely shifted from the insurer to the defendant, whose equitable position is inferior to that of the insurer; and [8] the insurer's damages are in a liquidated sum, generally the amount paid to the insured." (Fireman's Fund Ins. Co. v. Maryland Casualty Co. (1998) 65 Cal.App.4th 1279, 1292.)

"Equitable contribution, on the other hand, applies to apportion costs among insurers that share the same level of liability on the same risk as to the same insured. [Citation.] It 'arises when several insurers are obligated to indemnify or defend the same loss or claim, and one insurer has paid more than its share of the loss or defended the action without any participation by the others.' [Citation.] 'The purpose of this rule of equity is to accomplish substantial justice by equalizing the common burden shared by coinsurers, and to prevent one insurer from profiting

at the expense of others.' [Citations.]" (Maryland, *supra*, 81 Cal.App.4th at 1089.) Courts consider the nature of the claim, the relation of the insured to the insurers, the particulars of each policy and any other equitable considerations. (*Fire Ins. Exchange v. American States Ins. Co.* (1995) 39 Cal.App.4th 653, 664; *Truck Ins. Exch. v. Kaiser Cement & Gypsum Corp.*, (2024) 16 Cal. 5th 67.) "Of course, if one insurer never had an obligation to provide coverage, it would be extremely unfair to enforce a contribution action." (*Axis Surplus Ins. Co. v. Glencoe Ins. Ltd.* (2012) 204 Cal.App.4th 1214, 1228.) Thus, to prove a claim for equitable contribution in the co-insurer context, a plaintiff must show that 1) defendant had the same level of liability; 2) on the same risk; 3) as to the same insured; and 4) plaintiff paid more than its proportionate share than defendant.

Equitable indemnity is a "loss-shifting procedure" that "applies in cases in which one party pays a debt for which another is primarily liable and which in equity and good conscience should have been paid by the latter party." (*The Travelers Indem. Co. of Connecticut v. Navigators Specialty Ins. Co.*, (2021) 70 Cal. App. 5th 341, 362-363.) " 'Equitable indemnification is similar to equitable subrogation in that it also enables an insurer that has paid an obligation which was entirely the responsibility of a co-insurer to place the complete burden for the loss on that other party,' but '[t]he party seeking reimbursement through indemnification ... does so in his own right (as with a contribution claim).' " (*Id.*, at 363.) An insurer who has potential liability in the underlying lawsuit is entitled to settle any claim alleged against it without prejudice to its right to seek equitable subrogation or indemnity from other insurers alleged to have full or partial liability for the underlying claim. (*Id.*)

Defendant's Burden

Defendant argues that it is entitled to summary judgment on the three causes of action for subrogation, indemnity and contribution because its excess policy no. 267027622 attaches above \$10,500,000 and the claims at issue settled for only \$2,449,999.99, such that the limits of required underlying insurance were not exceeded.

Defendant provides evidence that PURE issued an excess policy to Marla Mayer and Chrispher Ahearn for the policy period from April 23, 2019, to April 23, 2020 (policy no. EX196895603). (UMF

6.) Section I – Definitions of the PURE policy provides, “Underlying Insurance means all liability insurance providing coverage for damages that are covered by this policy. Underlying insurance does not include this policy or insurance specifically purchased to be excess of this policy.” (UMF 7.)

Chubb issued an excess policy (no. 267027622) to Marla Mayer and Christopher Ahearn for January 6, 2019, to January 6, 2020. (UMF 8; Estes Decl., Ex. A.) The Chubb Excess Layer Coverage - Follow Form Endorsement (512 ACE-0312) provides, with respect to Personal Umbrella Coverage, “[t]his section is deleted in its entirety and replaced by the following: The coverage provided by this policy shall be on a follow form basis.” (UMF 9.) The Chubb Excess Layer Coverage - Follow Form Endorsement (512 ACE-0312) provides, “[a]ll references to ‘UMBRELLA’ made throughout this entire policy are revised to read ‘EXCESS.’” (UMF 10.) The Chubb Excess Layer Coverage - Follow Form Endorsement (512 ACE-0312), under Definition 7, provides:

“Follow form means that the coverage provided under this policy shall apply to the same extent it is provided under the policy(ies) shown in the Schedule Of Required Underlying Insurance And Limits listed in the Declarations, following the same definitions, exclusions, terms and conditions, unless this policy is otherwise modified by endorsement. When this policy pays damages in excess of the required underlying insurance exhausted by payment of claims, this policy will not provide broader coverage than is provided under the policy(ies) shown in the Schedule Of Required Underlying Insurance And Limits listed in the Declarations, unless this policy is otherwise modified by endorsement.”

(UMF 11.) The Chubb Excess Layer Coverage - Follow Form Endorsement (512 ACE-0312), under 15, Maintenance of Required Underlying Insurance and Limits, provides that the insureds “must maintain the required underlying insurance at the limits shown in the Schedule of Required Underlying Insurance and Limits” under certain terms. (UMF 12.) The Chubb Excess Layer Coverage - Follow Form Endorsement (512 ACE-0312) also provides that the policy “applies only in excess of the required underlying insurance as shown in the Schedule Of Required Underlying Insurance And Limits...” on certain terms. (UMF 13.) The Chubb declarations set forth a Schedule of Required Underlying Insurance and Limits which provides: “LIMIT EACH OCCURRENCE: \$10,000,000[.]” (UMF 14.)

Defendant argues that the above

policies demonstrate that their liability would only attach when the liability exceeds \$10.5M. Defendant reasons that, since Plaintiff settled the underlying litigation for less than \$10.5M, Defendant's excess policy no. 267027622 is not implicated. (UMF 3.) However, Plaintiff apparently seeks allocation of costs under Defendant's excess policy no. 1120093316, expressly identified by Defendant's umbrella policy no. 267027622. (Compl., ¶¶ 11, 17, 23, 26, 28.) The presented terms of policy no. 267027622 lists, under the Optional Coverage section, as "Excess Layer Coverage - Follow Form", the Chubb policy no. 1120093316 with a \$10M "limit" for each occurrence. (Estes Decl., Ex. A [PDF pp. 7, 14].) This is consistent with the allegations of the complaint. At best, Exhibit A only suggests that Chubb's policy no. 1120093316 is "excess" (up to \$10M) against PURE's primary policy no. PA196895303 with a \$500k limit. (Id., [at PDF pp. 6, 13 ["Schedule of Underlying Coverage" showing PURE's \$500k auto coverage limit].) Notably, Defendant does not present the terms of policy no. 1120093316 for examination.

Defendant also does not present any evidence that excess policy no. 196895603 does or does not describe or rate the subject Volkswagen. Under the allegations and UMFs discussed above, Insurance Code section 11580.9(d) shows that Chubb's excess policy (no. 1120093316) would be primary over the Plaintiff's excess policy (no. 196895603). This code section provides, in relevant part:

"where two or more policies affording valid and collectible liability insurance apply to the same motor vehicle or vehicles in an occurrence out of which a liability loss shall arise, it shall be conclusively presumed that the insurance afforded by that policy in which the motor vehicle is described or rated as an owned automobile shall be primary and the insurance afforded by any other policy or policies shall be excess."

(Ins. Code § 11580.9(d).) When section 11580.9(d) applies "any policy which describes or rates the motor vehicle as an 'owned automobile' bears primary responsibility for the loss and any other policy is excess." (Transport Indemnity Co. v. Royal Ins. Co. (1987) 189 Cal.App.3d 250, 253.) Section 11580.9(d) only applies to determine which policy is a primary policy, and does not determine priority of coverage and prorated contribution for the remaining excess tiers. (GuideOne Mutual Ins. v. Utica National Ins., (2013) 213 Cal.App.4th 1494, 1502-1503.) The Complaint alleges that Defendant's umbrella policy described the Volkswagen involved in the accident as a "covered vehicle," but the PURE

excess policy did not describe any vehicles. (Compl., ¶ 17.) Defendant also does not present the terms of Plaintiff's excess policy no. EX196895603. The only policy that Defendant presents (no. 267027622) lists the Volkswagen. At best, Defendant presents Plaintiff's discovery responses which indicate that the automobile policy (no. PA196895303) is primary to its excess policy (no. EX196895603), as its automobile policy describes the vehicle involved in the incident, and its excess policy does not. Of course, this contention would not adequately demonstrate that Plaintiff's excess policy should be prioritized over Chubb's excess policy under section 11580.9. Again, the Declarations in the umbrella policy no. 267027622 do not describe or cite PURE's excess policy in the schedule. It only cites Chubb's excess policy no. 1120093316. Thus, Defendant fails to show that the Chubb's excess policy no. 1120093316 would not be primary over the PURE excess policy (no. EX196895603) as alleged in the Complaint.

Notably, while Defendant fails to present the PURE excess policy, Plaintiff does provide the PURE excess policy in its opposition. In reply, Defendant cites the definition of "follow from" in PURE's 196895603 excess policy, which it argues incorporates coverage from PURE's underlying insurance, including the description of the insured vehicles. (See Plaintiff's COE Ex. 2, at 6 [PDF p. 43, definition of "follow from"].) Defendant thus reasons that PURE's excess policy specifically describes the Volkswagen by its VIN number and with greater specificity than Chubb's excess policy. However, this definition in the 196895603 excess policy does not expressly "describe" the subject Volkswagen or rate the subject Volkswagen as an owned vehicle. Defendant's policy on the other hand, does describe and rate the Volkswagen as an owned vehicle in the "Covered Vehicle Information" section. (Estes Decl., Ex. A [particularly describing Vehicle 1 as a "2016" "Vlks" "Jetta"].) Defendant submits no evidence that this description does not refer the subject Volkswagen. Defendant submits no authority that a vehicle needs to be specifically described via its VIN number for section 11580.9 to apply. (See *Scottsdale Indemnity Co. v. National Ins.*, (2014) 229 Cal.App.4th 1166, 1171 ["A vehicle is described or rated when it is 'particularized' in a policy"]; *Croskey, Insurance Lit.*, ¶ 8:50 ["The normal method of 'particularization' of a vehicle is to state its Vehicle Identification Number (VIN). Listing a vehicle as "owned" without stating its VIN or identifying it in any other way is not a sufficient particularization to make it a primary policy under Ins. C. § 11580.9(d)", emphasis added]; *Highlands Ins. v. Continental Cas.*, (9th Cir. 1995) 64 F.3d 514, 519 [same].) No party submits the terms of policy no. 1120093316 for the court to conclude that the policy does not describe the Volkswagen as alleged.

Defendant argues that policy no.

267027622 was reformed in 2023 to include the PURE excess policy. (UMF 22-24.) Generally, “reformation” of a contract is an equitable remedy applicable when the contract as written does not express the actual agreement of the parties, due to (1) fraud, (2) inequitable conduct, (3) mutual mistake of the parties, (4) negligent misrepresentation, or (5) a unilateral mistake by one party that was known or suspected by the other party at the time of contracting. (Civ. Code § 3399; *Am. Sur. Co. of N. Y. v. Heise*, (1955) 136 Cal. App. 2d 689; *Rail Servs. of Am. v. State Comp. Ins. Fund*, (2003) 110 Cal. App. 4th 323; see, e.g., *Genuser v. Ocean Accident Corp.*, (1943) 57 Cal.App.2d 979, 981-982 [after the wrong car was scheduled, the policy was reformed when “plaintiff had actually purchased a different car and that the description of the [car] should be inserted in the policy in lieu of the first description, due to plaintiff’s mistake and inadvertence”].) Reformation would relate back to the date of the contract. (*Bank of America v. Craig*, (1961) 193 Cal.App.2d 281, 289.)

Defendant fails to present evidence

that the relevant parties (including the insureds and Defendant) intended for a different agreement than the Chubb’s policy reflected in *Estes Decl.*, Ex. A, that such terms resulted from a mutual/unilateral mistake of the parties (i.e., a scrivener’s error). (UMF 22-24.) Critically, Defendant does not demonstrate with substantial evidence that there was an error requiring correcting or reforming that Chubb’s policy. Mr. Estes only provides a conclusory statement that in September 2023, the Ahearns and Bankers Standard reformed policy no. 267027622 to identify PURE policy no. 196895603 as the \$10 million required underlying insurance via endorsement. (*Estes Decl.*, ¶ 7, Ex. C.) At best, Defendant cites hearsay evidence from the insured’s insurance broker stating that NFO replaced “all the underlying coverage including the 1st layer excess with PURE but left the 2nd layer excess policy with Chubb” and that “[i]ncorrectly, the policy was modified on renewal[.]” (*Estes Decl.*, ¶¶ 5-6, Ex. B.) Without such affirmative evidence supporting a reformation occurred, the terms of Exhibit A hold for the purposes of this motion.

Defendant also argues that

Plaintiff lacks evidence that the purported omission of the PURE policy from the Chubb schedule was “not inadvertent or due to a scribbling error,” since Plaintiff gave a factually devoid discovery response to a request for such information. (UMF 24; see *Aguilar v. Atlantic Richfield Co.*, (2001) 25 Cal. 4th 826, 855 [a defendant may shift the burden on summary judgment by

presenting evidence that the plaintiff does not possess, and cannot reasonably obtain, needed evidence through admissions by the plaintiff following extensive discovery to the effect that he has discovered nothing].) Whether it was factually devoid or not, Defendant still must prove with admissible evidence all the elements of reformation, including a basis for reformation (such as mistake) and the actual intent of the parties. Defendant has the burden of production on these points. Defendant has failed to do so, even if Plaintiff apparently lacks evidence that there was no scrivener error.

Additionally, since Defendant has not shown that that Insurance Code section 11580.9(d) does not apply as alleged, subsection (f) would prevent any attempt at reformation here to alter the priorities. Subsection (f) states: "The presumptions stated in subdivisions (a) to (d), inclusive, may be modified or amended only by written agreement signed by all insurers who have issued a policy or policies applicable to a loss described in these subdivisions and all named insureds under these policies." Defendant does not present any evidence that Plaintiff approved of the purported reformation which would alter the priorities between an alleged primary policy no. 1120093316 and the excess policy no. EX196895603.

Accordingly, the motion is DENIED.

Summary Adjudication

In the separate statement and memorandum, Defendant requests summary adjudication in the alternative of PURE's subrogation cause of action. However, this request for adjudication is not noticed. The notice only requests summary judgment and provides no issues for adjudication.